

Air Force Research Laboratory (AFRL)
Enterprise Commercial Solutions Opening (CSO)

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1 OVERVIEW

The Air Force Research Laboratory (AFRL) Enterprise Commercial Solutions Opening (CSO) serves as the overarching enterprise announcement providing the framework for the issuance of competitive solicitations (i.e. Spirals), which will seek innovative, commercial solutions to meet the mission of the AFRL enterprise. Innovative products and/or services competitively selected by peer review of proposals resulting from a general solicitation are considered commercial notwithstanding the definition under Revolutionary FAR Overhaul (RFO) Subpart 2.101.

2 AUTHORITY

This CSO is issued in accordance with R-DFARS Subpart 212.70, for the acquisition of innovative commercial products or commercial services. The use of a CSO is permanently authorized by section 803 of the National Defense Authorization Act (NDAA) for Fiscal Year (FY) 2022 (Pub. L. 117-81) codified at 10 USC 3458.

3 SCOPE

The scope of this CSO encompasses the Areas of Interest (AOI) identified in ***Attachment 1 Areas of Interest (AOI)***. The Government seeks to obtain innovative solutions or new capabilities that fulfill requirements, close capability gaps, and/or provide potential technological advancements. Meaningful proposals with varying technical or scientific approaches are anticipated.

The Government reserves the right to amend the requirements of this CSO and each subsequent Spiral.

Potential offerors are advised that awards resulting from this announcement may be modified during performance to effect within-scope changes including, but not limited to, increase in value and/or level of effort as the Government explores the innovative solution.

4 INNOVATIVE SOLUTIONS

Resulting solutions awarded under the CSO shall meet the definition of “innovative” in accordance with 10 USC 3458 and implemented by R-DFARS 212.7001:

Innovative means—

- (1) Any technology, process, or method, including research and development, that is new as of the date of submission of a proposal; or
- (2) Any application that is new as of the date of submission of a proposal of a technology, process, or method existing as of such date.

A note on innovative studies and analysis (S&A) that may be funded with Operations and Maintenance (O&M) appropriations: The effort must also meet the definition of S&A; the working definition of which is “short term (preferably 1 year), non-developmental, investigative work that addresses urgent and the near-term needs, issues, and consultative questions.”

5 CSO WITH SPIRALS

Both enterprise-wide (i.e. centralized) and decentralized Spirals may be issued by either AFRL/PK or an issuing Mission Organization, respectively. This CSO will be active indefinitely for the issuance of the Spirals and will be updated annually, until terminated. It is the responsibility of prospective offerors to monitor the Governmentwide Point of Entry (GPE), SAM.gov (<https://sam.gov>), for additional information pertaining to this CSO as well as for future Spirals issued hereunder.

Prospective offerors shall adhere to this enterprise CSO as well as the information contained within the Spiral. Spirals will identify the areas of interest and period of performance requirements to which prospective offerors shall focus their solutions, as well as specific submission instructions/dates/times, and evaluation criteria. Each Spiral will be announced on the GPE.

6 TYPES OF AWARDS

The Government intends to award RFO Part 12 fixed-price type contracts, including fixed-price incentive; however, it reserves the right to award Other Transactions for Prototype (OTP) pursuant to 10 USC 4022 (to include follow-on production agreements).

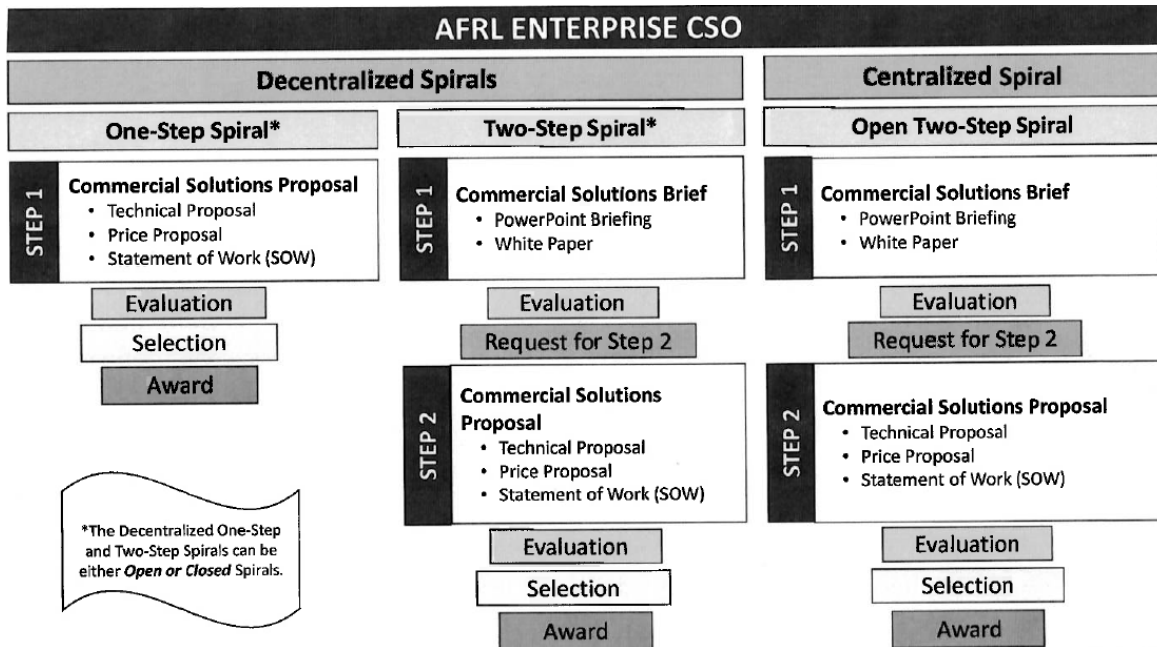
Prospective offerors are encouraged to review 10 USC 4022, including 10 USC 4022(f).

The Government reserves the right to incrementally fund any or all awards under this CSO.

The Government reserves the right to make no award as a result of the CSO Spirals and may award one or more contracts and/or OTPs for all, or part of, any submission. All awards are subject to the availability of funds and successful negotiations. The Government is not responsible for any monies expended by the offeror prior to the issuance of any award, to include, but not limited to, bid and proposal preparation costs.

7 ONE-STEP AND TWO-STEP SPIRALS

Spirals issued under this CSO may utilize either a One-Step or a Two-Step process as outlined below and may be Open or Closed.



Open Spirals provide an avenue for Industry to submit innovative solutions in alignment with the AOIs at any given time; Open Spirals may be issued by AFRL/PK (enterprise) or an issuing Mission Organization (decentralized).

Closed Spirals will be issued by a Mission Organization (decentralized) and narrow the area of interest for specific requirements and require submission by a specified time. Late bid and proposal provisions in accordance with RFO 52.212-1(c) apply. Proposals that the Government determines to fall within a Closed Decentralized Spiral but are submitted under an Open Spiral will not be considered for award.

One-Step Spiral for Commercial Solutions Proposal (CSP):

This process requires the prospective offeror to submit a CSP in response to a One-Step Spiral.

Contents: The CSP shall include a technical proposal, price proposal, and Statement of Work (SOW) in accordance with **Attachment 3: CSP Template**, or as otherwise directed in the Spiral. The Government reserves the right to require a Pitch in conjunction with, and as part of, the CSP.

Evaluation: The CSP will be evaluated in accordance with Section 8 of this CSO unless varying criteria is established at the Spiral level. At the conclusion of the evaluation, the offeror will be notified of the CSP categorization as defined in Section 9.

Two-Step Spiral for Commercial Solutions Brief (CSB) and CSP:

This process requires the prospective offeror to submit a CSB in response to a Two-Step Spiral.

Step-One Contents: The CSB shall include a PowerPoint Briefing and White Paper in accordance with **Attachment 2: CSB Template**, or as otherwise directed in the Spiral. The Government reserves the right to require a Pitch in lieu of the CSB.

Evaluation: The CSB will be evaluated in accordance with Section 8 of this CSO unless varying criteria is established at the Spiral level. A CSB that does not meet the compliance or evaluation criteria will not be considered further. At the conclusion of the CSB evaluation, the offeror will be notified of the CSB categorization as defined in Section 9. An offeror whose CSB is categorized as Selectable will be invited to move forward to Step-Two.

Step-Two Request for CSP: The designated Contracting Officer (CO) will issue a Request for CSP to the offeror(s) selected to move forward. Contents: The offeror shall submit a CSP that includes a technical proposal, price proposal, SOW and additional documentation as outlined in **Attachment 3: CSP Template**, or as otherwise directed in the Spiral. The submission due date will be included in the Step-Two Request for CSP.

Evaluation: The CSP will be evaluated in accordance with Section 8 of this CSO unless varying criteria is established at the Spiral level. The Government reserves the right to select all, some, or none of the submissions.

8 EVALUATION

General CSO Compliance: The CSB and/or CSP will be reviewed for compliance and to determine whether the commercial solution is "innovative" pursuant to R-DFARS Subpart 212.7001.

Method of Evaluation: The method of evaluation for CSB and CSP will include scientific, technological, or other subject-matter expert peer review process.

CSB Evaluation Factors: The Government will evaluate using the factors below unless otherwise specified at the Spiral level. The evaluation factors are of equal importance.

- a. Technical Merit and Applicability
- b. Funding Availability

CSP Evaluation Factors: The Government will evaluate using the factors below unless otherwise specified at the Spiral level. The evaluation factors are of equal importance.

- a. Technical Merit and Applicability
- b. Importance to Agency Programs
- c. Price
 - i. Price shall be considered to the extent appropriate, but at a minimum price will be determined fair and reasonable using the procedures at R-DFARS Subpart 212.204
- d. Funding Availability

9 CATEGORIZATION

CSB and CSP submissions will be categorized as either Selectable, Selectable/Insufficient Funding, or Not Selectable as defined below:

Selectable: Based upon the evaluation criteria, the CSB/CSP is selectable and sufficient funding is available.

Selectable/Insufficient Funding: Based upon the evaluation criteria, the CSB/CSP is selectable; however, insufficient funding is available.

Not Selectable: Based upon the evaluation criteria, the CSB/CSP is not selectable based. Even if there is sufficient funding, the submission should not be funded.

The Government reserves the right to award all, some, or none of a proposal. When the Government elects to award only part of a proposal, the selected part may be categorized as Selectable, though the proposal, as a whole, may not merit such a categorization.

10 SELECTION

CSB Selection: If a CSB is categorized as Selectable, the offeror will be notified that it has been selected to move to the Step-Two Request for a CSP.

CSP Selection: Award(s) will be made once a CSP is categorized as Selectable. The CO reserves the right to negotiate proposed scope of work, price, and other terms and conditions as may be required.

If a CSB or CSP has Technical Merit and Applicability, but there is insufficient funding, the CO may issue a formal notification to the offeror requesting authorization to maintain the

submission electronically for consideration and subsequent funding for a period of time, not to exceed one year.

11 OTHER AWARD CONSIDERATIONS

Eligibility. To be considered for award, offerors must be registered in the System for Award Management (SAM) at <https://sam.gov>, be considered responsible within the meaning of RFO Subpart 9.1, “Responsible Prospective Contractors,” have a satisfactory performance record, and otherwise be eligible for award based on federal law and regulation.

Safeguarding Covered Defense Information (CDI). Awards shall include either R-DFARS 252.240-7997, *NIST SP 800-171 DoD Assessment Requirements* (Deviation 2026-O0025), (FAR-based contracts), or equivalent (OTP), and the awardee shall be required to implement the NIST Special Publication (SP) 800-171 in effect at the time of the Spiral solicitation, or as otherwise authorized.

Additional Compliance Criteria for 10 USC 4022 OTPs. If the Government decides to pursue a 10 USC 4022 OTP, the CSP will be evaluated to determine if the following requirements are met:

- a. Meets the definition of a prototype project;
- b. Directly relevant to enhancing mission effectiveness;
- c. Meets the requirements for eligibility at 10 USC 4022(d):
 - i. There is at least one nontraditional defense contractor (as defined under Section 3014 of Title 10) or nonprofit research institution participating to a significant extent in the prototype project; or
 - ii. All significant participants in the transaction other than the Federal Government are small businesses (including small businesses participating in a program described under Section 9 of the Small Business Act (15 USC 638)) or non-traditional defense contractors; or
 - iii. At least one-third of the total cost of the prototype project is to be paid out of funds provided by sources other than the Federal Government; or
 - iv. The Senior Procurement Executive for the agency determines, in writing, that exceptional circumstances justify the use of a transaction that:
 - a) Provides for innovative business arrangements or structures that would not be feasible or appropriate under a contract; or
 - b) Would provide an opportunity to expand the defense supply base in a manner that would not be practical or feasible under a contract.

Science and Technology Protection (S&TP). The Government will conduct an S&TP Initial Risk Review for CSPs categorized as Selectable in accordance with the review procedures outlined in Attachment 4. The Government may ultimately decline to award an otherwise Selectable proposal as explained in Paragraph II(a)(3) of the attachment.

Export Control. Information involved in, or produced under, awarded efforts may contain Military Critical Technology List (MCTL) restricted by the Export Control Act (Title 22 USC 2751 et seq.) or the Export Administration Act of 1979, as amended (Title 50 USC 2401) (i.e. International Traffic in Arms Regulation (ITAR) (22 CFR Parts 120-130), or Export Administration Regulations (EAR) (15 CFR Parts 710-774)). If Export Control is determined to apply, then a certified DD Form 2345, Militarily Critical Technical Data Agreement, will be required and only entities who are registered and certified with the Defense Logistics Agency may participate. Contact the U.S./Canada Joint Certification Program Office, Defense Logistics Agency, Logistics Information Services J34, HDI Federal Center, 74 Washington Avenue N., Battle Creek, Michigan 49037-3084, (1-877-352-2255) or the Joint Certification Program Office (JCO) at JCP-ADMIN@DLA.MIL for further information on the certification process.

Representative List of Provisions and Clauses. Attachment 5, Representative List of Provisions and Clauses, is provided for informational purposes. The FAR and DFARS clauses referenced in the attachment may not apply to awards made pursuant to Non-FAR authorities (i.e. OTP), however, those awards may utilize the attachment as a starting point for the negotiation of articles.

12 ADDITIONAL INFORMATION

POINT OF CONTACT: General questions regarding this AFRL Enterprise CSO may be sent to afrl.cso.mailbox@us.af.mil. Utilized the email subject line: “*AFRL CSO General Question(s)*”.

Due to the large amount of expected interest in this CSO, and to maintain a written record of questions, this is the only email address that will be used for communication. Material questions and answers (Q&A) will be published and updated to the GPE.

Specific Spiral Questions and Submittals: Any questions regarding One-Step or Two-Step Spirals shall be sent to the POC identified in the Spiral.

DATA RIGHTS: It is the Government’s intention to acquire only Technical Data, Computer Software, and Computer Software Documentation data rights necessary to satisfy agency

needs. Resultant awards are subject to DFARS 252.227-7990, *Technical Data-Commercial Products and Commercial Service* (DEVIATION 2026-O0036), or equivalent, when the awardee will be required to deliver technical data related to commercial products, commercial components, commercial services, or commercial processes; and subject to DFARS 252.227-7980, *Rights in Technical Data, Computer Software, and Computer Software Documentation – Other Than Commercial Products and Commercial Services* (DEVIATION 2026-O0036), or equivalent. The data rights are subject to negotiation at the contract or OTP level.

FOREIGN PARTICIPATION: Participation of foreign persons as defined at 22 CFR 120.63 is prohibited for awards made under this announcement. Further, in accordance with the National Industrial Security Program Operating Manual (NISPOM), foreign firms or U.S. companies determined to be under foreign ownership, control or influence (FOCI) will not be permitted to participate.

NON-GOVERNMENT ADVISORS: PROPRIETARY information may be provided to Federally Funded Research and Development Centers (FFRDC), Systems Engineering and Technical Assistance (SETA), Systems Engineering and Integration (SE&I), and/or Advisory and Assistance Services (A&AS) contractors working for the Government for the purpose of evaluating/reviewing CSB/CSP submissions. These non-Government advisors have signed a non-disclosure agreement (NDA) with the Government.

DEBRIEFINGS: The Government will conduct written, post-award debriefings upon request and in accordance with RFO 52.212-1(e); debriefings will address the evaluation factors contained herein only.

PRE-AWARD FEEDBACK: When requested, written feedback will be provided to submitters of Open, Two-Step Spiral CSBs.

GOVERNMENT FURNISHED PROPERTY (GFP) AVAILABILITY: GFP is not anticipated to be made available under any resulting contract or OTP; however, a determination regarding GFP will be made for each award. Pursuant to RFO 45.201(b), the contractor is responsible for all costs related to making the property available for use, such as payment of all transportation, installation, or rehabilitation costs.

BASE SUPPORT/NETWORK/INSTALLATION ACCESS: To be identified in the Spirals and/or the Step-Two Request for CSP.

13 ATTACHMENTS AND APPENDICES

Attachment 1: Areas of Interest (AOI)

Attachment 2: CSB Template

Attachment 3: CSP Template

Attachment 4: AFRL Solicitation Language for Security Risk Review

Attachment 5: Representative List of Provisions and Clauses

Appendix 1: RESERVED

Appendix 2: Security Program Questionnaire

Appendix 3: Research and Related Senior and Key Person Profile Worksheet

Appendix 4: Privacy Act Statement

14 GLOSSARY OF TERMS

AFRL	Air Force Research Laboratory
AFRLI	AFRL Instruction
AO	Agreements Officer. Warranted Government Representative, non-FAR based agreements
AOI	Area of Interest
Awardee	General terminology for recipient of either a Contract or OTP
A&AS	Advisory and Assistance Services
CDI	Covered Defense Information
Contractor	Awardee of a FAR-based Contract
CO	Contracting Officer. Warranted Government Representative, FAR-based Contracts
CFR	Code of Federal Regulations
CSB	Commercial Solutions Briefing
CSP	Commercial Solutions Proposal
DFARS	Defense FAR Supplement
DoD SAFE	Department of Defense Secure File Access Exchange
FAR	Federal Acquisition Regulation
FFRDC	Federally Funded Research and Development Center
FOCI	Foreign ownership, control or influence
FY	Fiscal Year
GFP	Government Furnished Property
GPE	Governmentwide Point of Entry, i.e. SAM.gov
ITAR	International Traffic in Arms Regulation
JCO	Joint Certification Program Office
MCTL	Military Critical Technology List
MO	Mission Organization. These include: Foundational Technology Directorate Air Warfare Directorate Space Warfare Directorate Information and Spectrum Warfare Directorate Technology Transition Office

	Systems Technology Office 711 th Human Performance Wing
NDAA	National Defense Authorization Act
NDA	Non-Disclosure Agreement
NISPOM	National Industrial Security Program Operating Manual
NIST	National Institute of Standards and Technology
OCI	Organizational Conflict of Interest
Offeror	Submitter of a CSB/CSP
O&M	Operations and Maintenance
OSD	Office of the Secretary of Defense
POC	Point of Contact
Q&A	Questions and Answers
RAL	Risk Acceptance Level
Recipient	Awardee of a non-FAR instrument, e.g. Other Transaction for Prototype (OTP)
R&D	Research and Development
R&E	Research and Experimentation
RFO	Revolutionary FAR Overhaul
R-DFARS	RFO Defense FAR Supplement
SAM	System for Award Management
SE&I	Systems Engineering and Integration
SETA	Systems Engineering and Technical Assistance
S&T	Science and Technology
S&TP	S&T Protection
S&A	Studies and Analysis
SOW	Statement of Work
U.S.	United States
U.S.C.	United States Code